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IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

C.A. Revision Application No:
CA (PHC) APN 0044/2018

H.C. Panadura Case No: 3262/2015

In the matter of an Application for
Revision under Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Hon. Attorney General,
Attorney-General's Department, Colombo 12.
Complainant

Vs.

Mi Ian Mayuranga Wedamesthri (Presently at Kalutara Prison) Accused

AND BETWEEN

Milan Mayuranga Wedamesthri (Presently at Kalutara Prison) Accused-Petitioner
Vs.

Hon. Attorney General,
Attorney-General's Department, Colombo 12.
Complainant-Respondent

AND NOW BETWEEN

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BEFORE

COUNSEL

INQUIRY ON

WRITTEN SUBMISSIONS

DECIDED ON

Milan Mayuranga Wedamesthri (Presently at Kalutara Prison)
!. Accused-Petitioner-Petitioner

Vs.

Hon. Attorney General,
Attorney-General's Department,
Colombo 12.

Complainant-Respondent-
Respondent

K. I:. Wickremasinghe, J.

Mahinda Samayawardhena, J.

Dr Jayatissa De Costa, PC with AAL Chanuka Ekanayake for the Accused-Petitioner-Petitioner

Nayomi Wickremasekara, SSC for the Com p lainant -Respondent-Respondent

14.01.2019 , The Accused- Petitioner-Petitioner - On
21.11.2018 & 29.01.2019

The Com plainant -Respondent-Respondent - On 08.11.2018 & 25.01.2019

12.02.2019

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K.K. WICKREMASINGHE, J.
The Accused- Petitioner-Petitioner has filed a reVISIon application in this cOUl1

seeking to set aside the order made by the Learned High Court Judge of Panadura t
dated 15.12.2017 in case No. 3262/20 15,lrefusing to enlarge the accused-petitionef on bail pending an appeal. " Facts of the case:

The accused- petitioner-petitioner (hereLlafter referred to as the 'petitioner') was

indicted before the Learned High Court Judge of Panadura for committing an "
offence punishable under section 383 read with section 380 and section 32 of Penal
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Code. At the conclusion of the case the ILearned High Court Judge had convicted the petitioner.

Thereafter an application for bail, pentling appeal was made on behalf of the \ petitioner and the Learned High Court Judge has dismissed the same on , .1
15.12.2017. Being aggrieved by the said refusal, the petitioner preferred a revision
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application to this Court.
The Learned President's Counsel for the petitioner has submitted following grounds of revision in the petition and written submissions;

1. The sentence imposed by the Lea~ed High Court Judge is excessive sincCi both the alleged deadly weapon 'lnd the co-perpetrator of the offence were
not produced before Court.
2. The Learned High Court Judge has failed to duly appreciate the burden of proof which is required to convict the petitioner under the present penal laws
of the country.
3. The Learned High Court Judge has failed to appreciate the fact that as a result of the force used by the police officers, at the time when he was taken

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into custody, the petitioner su tained grave InJunes and had to be hospitalized.
4. The complainant-respondent-respondent (hereinafter referred to as the 'respondent') had neither listed the alleged deadly weapon nor the co-perpetrator of the offence during the trial even though the petitioner was indicted under section 32 read with, section 383 of Penal Code.
5. Identification parade was held in contrary to the procedure and therefore it caused prejudice to the petitioner.
6. The Learned High Court Judge ha. failed to appreciate the oral submissions of the petitioner's Counsel reg,:,rding the contradictory nature of the evidence led in the High Court trial.
7. The Learned High Court Judge: as failed to appreciate the exceptional circumstances brought to the notic~ of Court by the Learned Counsel in his oral submissions while supporting". he petitioner's bail application.
8. The Learned High Court Judge failed to consider the fact that the accused has previously not been convicted " f any offence.
9. Though the petitioner has filed -n appeal against the judgement of the

Learned High Court dated 15 .11.f O 1 7, by the time of the determination of I
the said appeal, the petitioner would have served a considerable part of !he I
sentence imposed by the Learned High Court Judge.

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The Learned President's Counsel for the petitioner submitted that the petitioner was sentenced for a term of 10 years rigorous imprisonment and a fine of Rs' 10,0001= with a default term of 06 months simple imprisonment.
However it is imperative to note tha~ the petitioner has not submitted the conviction and the sentencing order dated 15.11.2017. The Learned High Court Judge in his order dated 15.12.2017 hlis mentioned about another order dated Page 4 of 7 ... ,

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23.11.2017. Therefore we are unable to find the exact date on which the conviction and the sentence were imposed on the petitioner.
In the case of Dahanayake and others V. Sri Lanka Insurance Corporation Ltd. and others (2005) 1 Sri L.R. 67, it was held that,

"If there is no full and truthful di6'closure of material facts, the Court would
not go into the merits of the application but will dismiss it without further examination.,. "

In the case of Lokugalappaththige ~ ril & Others V. Attorney General [S.C (Spl.) L.A. No. 272/2013] it was held th it,

"In a brief manner a fair and fulr disclosure of all material facts would be essential and should be pleaded in applications to Superior Courts by parties aggrieved of orders and j udgments of the lower courts. In the same manner a ''plain and concise statements of allfacts and material" would be mandatory for special leave to Appeal Applications to the Supreme Court ... "

The Rule 3(1) (a) and (b) of the Court of Appeal (Appellate Procedure) Rules 199,0' require a petitioner to tender all the documents material to an application and in an event a petitioner fails to comply with' such provisions, the Court may ex mero motu or at the instance of any party, disrpiss such application.
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In the case of Shanmugavadivu V. Kulathilake (2003) 1 Sri L.R. 215, it was 1,- held that,

"According to Rule 3(1) (a) it is .:Zecessary for an application to be made by I'
way of petition together with an,.:affidavit is support of the averments a'1d these should be accompanied by the originals of documents material to surjz application. Rule 3(b) specifically refers to the application made by way of revision or restitution in integrum and states that those too should be made

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in like manner referred to In Rule 3(l)(a) with copies of relevant proceedings including pleadings tlnd documents produced in the Court of First Instance, tribunal or other institution to which such application relates ... " (Emphasis added)

These decisions amply demonstrate that t- is mandatory to submit all the relevant I
documents to Court when making an application and failure to do so will result in dismissal of the application. The order f ontaining the conviction and sentence is indeed a material document for an application for bail pending an appeal. Failure

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to submit the conviction order is fatal to a revision application that seeks to revise , the order of bail pending an appeal.
Further we observe that the grounds submitted by the Learned Counsel for the petitioner do not specify any illegality 'or irregularity in the bail order but in the conviction. Those questions of law and facts need to be addressed in a separat' appeal filed against the conviction. A J~dge is not required to consider the merits of a case in an application for bail pendjng an appeal. We too are not inclined to consider the merits of the High Court trial·in this revision application that was filed against the bail order.

In the case of Attorney General V. Ediriweera [S.C. Appeal No. 100/2005J J. (2006 B.L.R. 12), it was held that,

"The norm is that bail after conviction is not a matter of right but would be granted only under exceptional circumstances. "

In the case ofR. Muthuretty V. The Qu'een [54 NLR 493], it was held that,

" ... J would say that the improbability of absconding would be a relevwtt
~ consideration in an applicatiorl for bail pending trial and not in alfl applicationfor bail pending appeql.

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" . A Court will not grant bail as a rule. Bail is granted only in exceptional
circums tances ... "

Accordingly it is well settled law that bail, pending an appeal, will be granted only upon the demonstration of exceptional circumstances. We observe that the Learned High Court Judge in the order dated 15.12.2017 held that, I,

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@El ~6-&~ 2:5)6®. Ci)25)l® g<mc0'ck 2SJ 86(25) e50'®~ W~0'cD a~0C enZ£El25) <tb§~2:5)JB 25)25f25fEl~c) q®25)6 ~®~f I w~ 52251 ~"l z:s5'e5®C) w~ <to'aJ0eDJ~25f e5

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en 25) ... " (Page 06 in document mark~d as 'X3' in the brief)
Therefore the Learned High Court Judgy was correct in refusing to enlarge the petitioner on bail pending an appeal due 0 lack of exceptional circumstances. For these reasons, this revision application shr,uld stand dismissed.
We affirm the order of the Learned 'High Court Judge of Panadura dated 15.12.2017.

Accordingly the revision application is hereby dismissed without costs.

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JUDGE OF THE COURT OF APPEAL

Mahinda Samayawardhena, J.
I agree,

JUDGE OF THE COURT OF APPEAL

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